

Multiple Choice (10 marks)

1. Dworkin contends that to every legal question there is only one right answer. Which proposition below is most inconsistent with this claim?
 - (a) In hard cases judges generally decide cases on the basis of rights.
 - (b) The rights of the parties feature in the determination of most cases before the courts.
 - (c) Judges exercise strong discretion.
 - (d) Judges seek the best 'fit' with constitutional and institutional history.
2. Which one of the following doctrines is not associated with Natural Law thinking
 - (a) Doctrine of substituted security
 - (b) Doctrine of due process
 - (c) Doctrine of bias
 - (d) Doctrine of reasonableness
3. Which statement below best represents Durkheim's view of the function of punishment?
 - (a) Deterrence.
 - (b) Rehabilitation.
 - (c) Vengeance.
 - (d) Desert.
4. Which statement below is the least likely to follow logically from Savigny's notion of a Volksgeist?
 - (a) A society's law is a reflection of its culture.
 - (b) Law is like language.
 - (c) Law is the deliberate expression of a sovereign's will.
 - (d) Law is an integral element of the social fabric.
5. Robert Nozick's proposes the formula $r \times H$ as a guide to determine the appropriate punishment. What does it mean?
 - (a) Effectiveness of rehabilitation of multiplied by hazard to the community.
 - (b) Extent of responsibility multiplied by actual harm done.
 - (c) Risk of violence multiplied by degree of humility of offender.
 - (d) Recidivism multiplied by defendant's history.

True / False (10 marks)

Answer True or False

6. True or False: Kelsen's Grundnorm is a presupposition that facilitates our understanding of a legal system.
7. True or False: Standard-setting in human rights diplomacy means establishing binding legal standards that countries must follow.
8. True or False: Moral values are independent and objective, playing a crucial role in understanding law and justice.
9. True or False: The UN Human Rights Council is a treaty-based mechanism that evaluates the human rights records of all UN member states.
10. True or False: The flag State ordinarily exercises jurisdiction over crimes committed on board its vessels.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the role of treaties as sources of international law under Article 38 of the ICJ Statute, emphasizing the significance of treaties that are in force and binding on the parties involved.
12. Discuss the rationale behind the exhaustion of local remedies in international human rights law, including its implications for local judicial capacity and international tribunal efficiency.

End of Paper